



**CONTRACT FOR PROVISION FOR NETWORK VULNERABILITY
ASSESSMENT AND PENETRATION TESTING**

BETWEEN

UNCLAIMED FINANCIAL ASSETS AUTHORITY

AND

XTRANET COMMUNICATIONS LIMITED.

CONTRACT FOR PROVISION FOR NETWORK VULNERABILITY ASSESSMENT AND PENETRATION TESTING

This Agreement, [hereinafter called "the Contract"] is entered into this 26TH day of APRIL, 2024 between **UNCLAIMED FINANCIAL ASSETS AUTHORITY** a state corporation established pursuant to the Unclaimed Financial Assets Act, 2011 of P.O. Box 28235 Nairobi, hereinafter called the Client of one part and **XTRANET COMMUNICATIONS LIMITED** of P.O Box 27346-00100 Nairobi, Kenya hereinafter called the "Vendor" of the other part.

WHEREAS the Client wishes to have the Vendor to provide it with Network Vulnerability Assessment and Penetration Testing Services as per **RFQ NO: UFAA/VA/016/2023/2024** hereinafter referred to as "the Service", and

WHEREAS the Vendor is willing to perform the said Service.

THE PARTIES HEREBY AGREE AS FOLLOWS:

1.0 THE CONTRACT

1.1 The following documents as per Tender No: **UFAA/VA/016/2023/2024** shall form part of this contract;

- (i) The Request for Proposal document
- (ii) General conditions of contract (set out as Annex 1 to this contract)
- (iii) Special conditions of contract (set out as Annex 2 to this contract)
- (iv) Terms of reference (set out as Annex 3 to this contract)
- (v) The Letters of award and acceptance (set out as Annex 4 to this contract)
- (vi) The Form of Tender and Price Schedule (set out as Annex 5 to this contract)
- (vii) Beneficial Ownership Disclosure Form (set out as Annex 6 to this contract)
- (viii) The Vendors work plan. (set out as Annex 7 to this contract)
- (ix) The Vendor's Team Composition (set out as Annex 8 to this contract)

1.2 In case of any conflict between the terms of this contract and the general and special conditions of contract the terms of this contract shall prevail.

2.0 TERM

2.1 This Agreement shall be for a period of **Three Months** starting from the 8TH day of MAY, 2024 to the 7TH day of AUGUST, 2024.

2.2 The term of the contract may be extendable by mutual agreement for a further period to be agreed upon by the parties in writing and such extension is subject to satisfactory performance of the Contract.

2.3 The Client or the vendor may at any time before the end of this Contract engage the other party to the contract on the extension of this Agreement on such terms as may be agreed upon by both the Client and the vendor.

3.0 CONTRACT PRICE

3.1 In consideration of the Vendor providing the aforementioned services, the client shall pay a total of

ANNEX 3: TERMS OF REFERENCE

TECHNICAL REQUIREMENTS

REQ ID	Question
A1	Perform comprehensive manual and automated penetration testing, threat modelling and security architecture review
A2	Able to employ an appropriate methodology for all the verification techniques to be used for identified vulnerabilities. Describe this methodology.
A3	Able to use a well described risk model when identifying risks tailored for the UFAA environment. Describe this model in detail.

A4	Perform black, grey and white boxing testing as per the identified scope of systems. Describe in detail the steps that you will undertake at each of these stages of the exercise
A5	Perform penetration testing that is platform diagnostic i.e. covering all identified operating system platforms, network devices, database management systems and applications
A6	Provide analysis of UFAA Information security Controls and present a report detailing status of existent controls and recommendations as to how these controls can be improved citing various technologies and tools available to implement these controls
A7	Provide details of your unique capabilities as a professional penetration testing team in terms of recent innovations, new attack techniques, abilities in testing new technologies, vulnerability research and analysis etc...

OPERATIONAL REQUIREMENTS

REQ ID	Question
A1	The testing should NOT be in anyway obtrusive or intrusive in terms of causing a denial of service or downtime of systems to users both internally and externally at any given time.
A2	Sign a full NON-Disclosure agreement to protect the confidential and integrity of UFAA's information.
A3	Provide the steps that you will be taken to ensure that you protect UFAA's information, including all information about our systems and any risks discovered, while it is in your custody. Please describe your information storage security and need-to- know processes.

A4	Provide for a wide array of reports tailored for both executive and very technical audiences. Describe and showcase these reports.
A5	Provide comprehensive training knowledge transfer to the UFAA's ICT Team throughout the entire penetration testing exercise on attack-and-defend methods used including tools, techniques, practical walkthroughs, expert shadowing and any other resources available.

DELIVERABLES

At the conclusion of the delivery and deployment, the Authority requires written summary executive documentation and detailed technical documentation.

The deliverables for VAPT activity are as follows: -

- a) Execution of Vulnerability Assessment and Penetration Testing for the identified network devices, security devices, servers, applications, websites, interfaces (part of application), thick/thin clients etc. as per the Scope mentioned below and Analysis of the findings and guidance for resolution of the same.
- b) Verification of closure of critical vulnerability.
- c) Perform compliance verification of closure of findings.
- d) Draft VAPT Report followed by final report.
- e) Compliance verification (Optional)

The VAPT Report should contain the following:-

- a) Identification of Auditee (Address & contact information)
- b) Dates and Locations of VAPT
- c) Terms of reference
- d) Standards followed including confirmation of testing as per International Best practices and OWASP Web application security guidelines.
- e) Analysis of vulnerabilities and issues of concern
- f) Recommendations for corrective action
- g) Personnel involved in the audit.
- h) Summary of audit findings including identification tests, tools used, and results of tests performed (like vulnerability assessment, penetration testing, application security assessment, website assessment, etc.)
- i) Tools used and methodology employed.
- j) Positive security aspects identified.
- k) List of vulnerabilities identified.
- l) Description of vulnerability.
- m) Risk rating or severity of vulnerability.
- n) Category of Risk: Very High (Critical) / High / Medium / Low.
- o) Test cases used for assessing the vulnerabilities.
- p) Illustration of the test cases
- q) Applicable screenshots.

XCL/UFAA/0419/24/1

19th April, 2024

Chief Executive Office and Managing Trustee
Unclaimed Financial Asset Authority
Pacis Centre, 2nd Floor, Slip Road, Off Waiyaki Way
P.O Box 28235-00200 City Square,
Nairobi, Kenya

Dear Sir

**RE: ACCEPTANCE OF AWARD FOR TENDER NO. UFAA/VA/016/2023/2024: OF
VULNERABILITY ASSESSMENT AND PENETRATION TESTING-**

We acknowledge receipt of the letter Ref: UFAA/VA/016/2023-2024 dated 12th April 2024 as an acceptance of tender for Vulnerability Assessment and Penetration Testing at a contract price of Kshs. 1,700,000.00 (Kenya Shillings one million seven hundred thousand only) Inclusive of taxes.

We accept this award, understand the content and shall abide as stated.

We are grateful for this opportunity and look forward to a continuous business relationship.

Yours Sincerely,



Henry Njoroge
Chief Executive Officer
Xtranet Communications Ltd.

**XTRANET COMMUNICATIONS
LIMITED**
P.O. Box 27346 - 00100,
NAIROBI - KENYA.